

STATE OF NEW YORK

8412--D

R. R. 532

2025-2026 Regular Sessions

IN ASSEMBLY

May 14, 2025

Introduced by M. of A. BICHOTTE HERMELYN -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- reference changed to the Committee on Ways and Means -- reported and referred to the Committee on Rules -- ordered to a third reading -- amended on the special order of third reading, ordered reprinted as amended, retaining its place on the special order of third reading

AN ACT to amend the public housing law, in relation to succession rights for New York city housing authority properties

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public housing law is amended by adding a new section
2 402-h to read as follows:

3 § 402-h. Succession rights. 1. The policies and procedures of the New
4 York city housing authority include, and shall continue to include,
5 policies and procedures allowing individuals to claim succession rights
6 to public housing units in properties owned and operated by the New York
7 city housing authority upon the permanent departure or death of the
8 tenant of record from the unit.

9 2. The New York city housing authority shall establish written poli-
10 cies and procedures for asserting succession rights consistent with the
11 requirements of applicable federal, state, and local laws, regulations,
12 and guidance, as they may change from time to time. Such written poli-
13 cies and procedures shall also be consistent with the New York city
14 housing authority's occupancy standards. Such policies and procedures
15 shall include, but not be limited to:

16 (a) eligibility requirements for lease succession;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (b) relocation requirements, if any, arising out of lease succession;
2 (c) the requirement to pay use and occupancy during the pendency of
3 succession rights proceedings; and

4 (d) the right to an administrative grievance of the New York city
5 housing authority's denial of succession rights, except as limited by
6 the New York city housing authority's succession rights policies and
7 procedures.

8 3. The New York city housing authority shall issue notice in writing
9 of substantive changes to its succession rights policies and procedures
10 at least thirty days prior to implementing those changes, and shall
11 afford an opportunity to provide written comments with respect to the
12 proposed changes. The New York city housing authority shall consider
13 written comments prior to implementation of the proposed changes.

14 § 2. This act shall take effect immediately.